

25NWLC57285 25NWLC57285

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-27

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Case Number: 25NWLC57285 Hearing Date: July 27, 2026 Dept: Y

25NWLC57285: TD BANK USA, N.A. vs DANIELA SANTANA

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Plaintiff TD Bank USA, N.A. ("Plaintiff") in support of its Motion for Judgment on the Pleadings ("Motion"), including the meet and confer letter dated January 22, 2026, as well as the Complaint and Answer.

Plaintiff's Motion was initially set for hearing on June 16, 2026. At the initial hearing, Defendant requested a continuance of the hearing to discuss settlement. The Court granted that request and continued the hearing on the Motion to July 27, 2026. The Court has not been advised of the status of any settlement between the parties and thus rules as follows:

The Court finds that Defendant, in her Answer filed on November 12, 2025, admitted all of the statements of the complaint, but requested consideration due to financial hardship.

Although the Court may consider financial hardship of the Defendant, if and when Plaintiff seeks to collect on the judgment, the Court cannot consider "financial hardship" as an affirmative defense to the debt owed.

Plaintiff's Motion for Judgment on the Pleadings is GRANTED as the Complaint states facts sufficient to constitute a cause of action against Defendant and the Answer does not state facts sufficient to constitute a defense.

The Court orders Judgment in favor of Plaintiff TD Bank USA, N.A. and against Defendant Daniela Santana for the principal sum of \$4,974.09 plus costs in the amount of \$413.00 for a total judgment of \$5,387.09.

The Proposed Judgment will be signed by the Court.

Plaintiff to give notice.